



U.S. Department
of Transportation

Research and
Special Programs
Administration

AUG 23 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9130
(SIXTH REVISION)

1. Great Lakes Chemical Corp., El Dorado, Arkansas, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of certain Division 5.1 materials for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of certain Division 5.1 materials in polyethylene containers not to exceed 50 pounds capacity each, overpacked in a non-DOT specification corrugated fiberboard box as prescribed in 49 CFR 173.217(c) or a DOT Specification 12B corrugated fiberboard box, and provides no relief from any regulation other than as specifically stated. Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1991.

2. BASIS. This exemption is based on Great Lakes Chemical Corporation's application dated July 15, 1994, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class).
1-Bromo-3-Chloro-5, 5-Dimethylhydantoin; 1-Bromo, 3-Chloro-5, 5-Dimethyl 2, 4 Imidazolidinedione; 1,3 dihalo-5, 5-dialkylhydantoin, classed as Division 5.1.

4. PROPER SHIPPING NAME (49 CFR 172.101). Oxidizer, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.154.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is:

a. A non-DOT specification corrugated fiberboard box, RSC-style of 200-pound test, C-Flute single-wall board. Inside packaging to consist of:

(1) Polyethylene pail (tub), containing no more than five pounds of product. No more than eight pails per box (four pails per layer, two layers high), separated by a pad and partitions of 200-pound test, SW corrugated fiberboard, or

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NO RENEWAL }

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(2) Polyethylene pail (tub) containing no more than 10 pounds of product. No more than four pails per box, separated by partitions of 200-pound test, SW corrugated fiberboard; or

(3) Polyethylene pail (tub), containing no more than two pounds of product, no more than 12 pails per box, separated by partitions of 200-pound test, SW corrugated fiberboard; or

(4) Polyethylene jugs containing no more than four pounds of product, no more than nine jugs per box, separated by partitions of 200-pound test, SW corrugated fiberboard.

b. A tight fitting non-DOT specification corrugated fiberboard box of not less than 275 pound bursting strength with top and bottom pads of 200 pound test, C-Flute, single wall board. Inside package consists of:

(1) A single polyethylene pail with locking lid containing no more than fifty pounds of product.

c. DOT Specification 12B corrugated fiberboard box containing not more than 12 polyethylene bottles or pails, each containing two pounds or less of product, with a total net weight of 24 pounds or less.

Each box must be sealed for shipment with glue or tape and be capable of satisfactorily withstanding the performance tests prescribed in 49 CFR 178.210-10.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

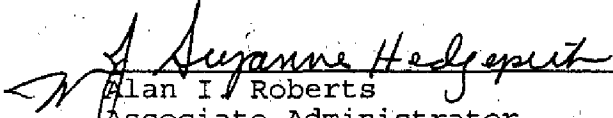
b. No new construction of the packaging identified in paragraph 7 of this exemption is authorized after September 30, 1994. As the holder of this exemption, you may request a renewal to continue the use of the packaging manufactured prior to September 30, 1994. However, the exemption will not carry an expiration date subsequent to September 30, 1996 since use of the packaging is prohibited after that date. This is consistent with the transitional provisions of 49 CFR Section 171.14 and the implementation of the new packaging requirements adopted under Docket HM-181.

9. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

10. EXPIRATION DATE. July 31, 1996.

Issued at Washington, D.C.:

AUG 23 1994


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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